



## CHAPTER xviii.

An Act to empower the mayor aldermen and burgesses of the borough of Warwick to acquire lands to provide for the extinguishment of common rights and lammas rights in or over St. Mary's Commonable Lands Lammas Field Common the Pigwells Common and Saltisford Common and for other purposes.

[13th July 1948.]

**W**HEREAS the borough of Warwick (in this Act called "the borough") is a municipal borough under the government of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas there are situate in the borough certain lands commonly known as Lammas Field Common Saltisford Common and the Pigwells Common:

And whereas Saltisford Common and the Pigwells Common and parts of Lammas Field Common known respectively as St. Mary's Commonable Lands and the Spinney comprising in all one hundred and thirty-four acres or thereabouts are subject to common rights and are claimed to be vested in four chamberlains appointed annually by the Warwick Borough Court Leet to hold the said lands in trust for the holders of common rights:

And whereas other parts of Lammas Field Common comprising eighty-seven acres or thereabouts including lands belonging respectively to the trustees of King Henry VIII's Charity the trustees of Oken's Charity and the trustees of Eyffler's Charity and lands belonging to the Right Honourable the Earl of Warwick and the Greville Trust Company



are subject to lammas rights which entitle the commoners to graze cattle from Lammas Day namely the first day of August to Candlemas Day namely the second day of February:

And whereas Lammas Field Common and certain other lands have been used for many years as a racecourse but during the recent war possession of the said lands was taken by the Secretary of State for War under the powers of the Defence (General) Regulations 1939 and the holding of race meetings was discontinued:

And whereas it is considered that the resumption of the Warwick Races will not be economically practicable unless the racecourse can be legally closed on race days:

And whereas owing to the multiplicity of ownerships and the diversity of rights appertaining to the said lands it is expedient that the Corporation should be empowered to purchase the said lands comprising two hundred and twenty-nine acres or thereabouts:

And whereas it is expedient to make provision for the extinction of such common rights and lammas rights and any other rights as may exist in relation to the said lands:

And whereas it is expedient that the Corporation should be empowered to carry on or to permit the carrying on of races on the said racecourse and that subject thereto the said lands or part thereof should be made available for the recreation of the public under the control of the Corporation as provided by this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

And whereas a plan showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerk of the county council of the administrative county of Warwick and are hereinafter respectively referred to as the deposited plan and the deposited book of reference.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and



Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

## PART I.

## PRELIMINARY.

1. This Act may be cited as the Warwick Corporation Act Short title. 1948.

2. This Act is divided into Parts as follows (that is to say):— Division of Act into Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—As to user of lands and extinguishment of rights.

Part IV.—Finance.

Part V.—Miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification (namely):— Incorporation of Acts.

(a) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict. c. 18.

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“the borough” means the borough of Warwick;

“the Corporation” means the mayor aldermen and burgesses of the borough;

“the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“the Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 Part V of the Town and Country Planning Act 1947 and by this Act; 9 & 10 Geo. 5. c. 57.  
10 & 11 Geo. 6. c. 51.



## PART I.

—cont.

38 & 39 Vict.  
c. 55.

“the Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

“the Act of 1933” means the Local Government Act 1933;

“the Minister” means the Minister of Health;

“Lammas Field Common” means the lands in the borough which are numbered 5 and 6 on the deposited plan;

“Saltisford Common” means the lands in the borough which are numbered 1 on the deposited plan;

“the Pigwells Common” means the lands in the borough which are numbered 3 on the deposited plan;

“racecourse extension” means the lands in the borough which are numbered 8 on the deposited plan;

“the town clerk” means the town clerk of the borough and includes any person duly authorised to discharge temporarily the duties of that office.

## PART II.

## LANDS.

Power to  
acquire lands.

5.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use all or any of the lands shown on the deposited plan and described in the deposited book of reference which they may require for the purposes of this Act.

(2) Except as provided by this Act the Corporation shall not dispose of any land acquired by them under this section otherwise than with the consent of the Minister of Town and Country Planning.

Period for  
compulsory  
purchase  
of lands.

6. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the first day of October nineteen hundred and forty-eight.

Correction  
of errors in  
deposited  
plan and  
book of  
reference.

7.—(1) If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the borough for the correction of such plan or book of reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and



they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Such certificate or a copy thereof shall be deposited with the clerk of the county council of the administrative county of Warwick and a duplicate thereof shall be deposited with the town clerk and thereupon such plan or book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands in accordance with the certificate.

(4) Such certificate or copy and duplicate respectively shall be kept by such clerk and town clerk respectively with the other documents to which the same relate.

8. At any time after notice to treat has been served for Further any land which the Corporation are by this Act authorised powers to purchase compulsorily the Corporation may after giving of entry. to the owner and occupier of the land not less than one month's notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

9. The Corporation and their surveyors officers and work- Power to men and any person duly authorised in writing under the enter upon hand of the town clerk may from time to time at all reason- property for able times in the day upon giving in writing for the first time survey and seven days' and afterwards from time to time three valuation. days' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

10.—(1) Any private right of way over land which the Corporation are authorised by this Act to acquire compulsorily shall if they so resolve and give notice of the resolution to the owner of the right be extinguished as from the acquisition by them of the land or as from the expiration of one month from the service of the notice whichever may be the later. Extinction of private rights of way.



PART II.  
—cont.

(2) The Corporation shall pay compensation to all persons interested in respect of any such right so extinguished and such compensation shall in case of dispute be settled in manner provided by the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

Powers with  
reference to  
leases of  
surplus lands.

11.—(1) The Corporation may accept a surrender of any lease or letting granted by them of lands acquired under the powers of any Act or Provisional Order and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of such lands as aforesaid.

(2) ~~The Corporation may~~ enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Corporation of or in all or any of the lands leased or let or agreed to be leased or let at such times and on such terms and conditions as may be determined by the Corporation in their discretion.

(3) Any lease granted by the Corporation in pursuance of this section shall be subject to similar conditions and limitations as are prescribed in section 16 (Retention and disposal of lands) of the Warwick Corporation Act 1928 with respect to leases granted thereunder.

18 & 19 Geo. 5.  
c. xxxv.

## PART III.

## AS TO USER OF LANDS AND EXTINGUISHMENT OF RIGHTS.

12. As from the first day of January nineteen hundred and forty-nine—

- (a) all common or commonable rights on or over Saint Mary's Commonable Lands Saltisford Common the Pigwells Common and the Spinney or any part of such lands; and
- (b) all lammas and other rights on or over Lammas Field Common including Swan Meadow and Star Close or any part of such lands;

which are shown on the deposited plan and described in the deposited book of reference shall be and are hereby respectively extinguished.

Compensation  
for rights  
extinguished.

13.—(1) The Corporation shall pay or make compensation (if any) for the common or lammas or other rights extinguished by this Act to the persons who shall be lawfully



entitled to the fee simple of the hereditaments to which such rights are appurtenant and who shall within a period of six months after the passing of this Act deliver to the Corporation a claim in writing to such compensation.

(2) If the Corporation shall dispute the right of any person to compensation under subsection (1) of this section such dispute shall be settled by arbitration under the Arbitration Acts 1889 to 1934.

(3) The compensation to be paid or made by the Corporation under subsection (1) of this section to any person entitled to such compensation shall be settled in manner provided by the Lands Clauses Acts:

Provided that the Corporation may by resolution passed within one month after the expiration of the period within which claims for compensation are to be delivered to them under subsection (1) of this section determine that all questions of compensation arising under this section shall be settled in accordance with subsection (4) of this section.

(4) If the Corporation pass the resolution referred to in subsection (3) of this section the following provisions shall have effect (namely):—

(a) The Corporation shall within six weeks after the expiration of the period within which claims for compensation are to be delivered to them under subsection (1) of this section convene a meeting of the persons who have rights to such compensation and have delivered such claims in the same manner as if the rights extinguished by this Act were commonable rights within the meaning of section 102 of the Lands Clauses Consolidation Act 1845;

(b) Such meeting shall proceed to the appointment of a committee in manner provided by section 103 of the Lands Clauses Consolidation Act 1845 and in the event of such committee and the Corporation being unable to agree upon a sum of money or other compensation to represent the value of the rights extinguished by this Act the question shall be determined and compensation shall be paid in manner provided by sections 99 and 101 to 107 inclusive of the Lands Clauses Consolidation Act 1845 for the determination and payment of compensation for the commonable and other rights referred to in those sections.

14. Upon the final determination of the compensation (if any) payable in respect of any common rights extinguished by this Act or the date of such extinguishment (whichever shall be the later) the offices of chamberlain and herdsman of Offices of chamberlain and herdsman to be abolished.



PART III.  
—cont.

Saint Mary's Commonable Lands shall lapse and no further appointment to such offices shall be made by the Warwick Borough Court Leet.

Use of  
racecourse  
for race  
meetings.

15. The Corporation may carry on races or may from time to time lease for such periods not exceeding twenty-one years as they may think fit the racecourse on Lammas Field Common and the racecourse extension and any stands stables or other buildings or enclosures used in connection therewith.

Power to close  
certain lands.

16. Notwithstanding any custom or usage or anything contained in this or any other enactment the Corporation shall have power to close to the public—

(a) so much of Lammas Field Common as is required for the purpose of a race track;

(b) a further part of Lammas Field Common not exceeding ten acres in extent;

(c) any other part of Lammas Field Common for a period not exceeding twenty-eight days in any one year and not exceeding fourteen days consecutively;

(d) Saltisford Common or any part thereof for a period not exceeding twenty-eight days in any one year and not exceeding fourteen days consecutively;

(e) any public footpaths or rights of way over the lands so closed during the period of closure:

Provided that nothing in this section shall authorise the obstruction or closing of any public footpath or right of way over Lammas Field Common to a greater extent than the following (namely):—

(1) the permanent partial obstruction of any such footpath at a point where it crosses the race-course track by the erection and maintenance of a barrier having a single rail for the purpose of enclosing such track; and

(2) the temporary closing or diversion of the same on any day on which horse racing takes place on the common in the course of any organised race meeting and for a period not exceeding seven days prior to the first day of any such meeting.

Use of lands  
as pleasure  
grounds.

17.—(1) Lammas Field Common and Saltisford Common (except any part or parts thereof closed to the public under the authority of this Act) shall be deemed to be public parks or pleasure grounds or lands acquired by the Corporation for the purpose of cricket football tennis bowls golf race meetings camping horse riding and athletic sports or other games and recreations or partly the one or partly the other as the Corporation may from time to time determine and



the Corporation may exercise in regard thereto respectively the powers conferred upon them by the Public Health Acts in respect of public parks and pleasure grounds:

PART III.  
—cont.

Provided that the Corporation may at any time (in addition to any powers conferred upon them by this Act) with the consent of the Minister (after holding a public inquiry if he thinks fit) and subject to such conditions (if any) as he may impose appropriate any part or parts of the said lands for purposes other than the purposes hereinbefore referred to.

(2) The provisions of subsections (2) to (5) of section 290 of the Act of 1933 shall apply to any inquiry held by the Minister under this section.

18. The Corporation shall have the following powers in relation to Lammas Field Common and Saltisford Common:—

Power to lease  
or otherwise  
deal with  
parts of  
commons.

(1) The Corporation may lease such part or parts of the Lammas Field Common as may be necessary for the purpose of erecting and maintaining enclosures stands and other buildings booths tents and stalls in connection with the racecourse or the Corporation may themselves erect and maintain such enclosures stands buildings booths tents or stalls and may also erect and maintain keepers' and caretakers' houses:

(2) The Corporation may let any part of Lammas Field Common and Saltisford Common not exceeding twenty acres for a period not exceeding six weeks in any year for the purposes of circuses and other public entertainments:

(3) The Corporation may set apart or let for such periods not exceeding three months in any year as they may think fit any part of Lammas Field Common and Saltisford Common not exceeding one hundred acres for the purpose of holding fairs agricultural horticultural and other shows and for such periods not exceeding one year as they may think fit for camping grounds athletic sports cricket football lawn tennis and other games and other like purposes and may make agreements as to the control and maintenance of the parts so set apart subject as hereinafter mentioned:

(4) The Corporation may lay out golf-courses upon Lammas Field Common and Saltisford Common and may pay such sum as they think proper to any person or persons who may lay out a golf-course thereon and the Corporation may make such charges as they think fit for the playing of golf upon such



PART III.  
—cont.

course or courses and may let any such course or courses for such periods not exceeding three years as the Corporation may think fit:

Provided that if the Corporation lay out such a course or make a payment in respect of the laying out of any course the public shall be entitled (subject to such regulations as may be made by the Corporation) to use the course laid out or in respect of which the Corporation shall have made such payment on payment of such reasonable charges as the Corporation may prescribe:

- (5) The Corporation may subject to the provisions of this Act close to the public any part of Lammas Field Common and Saltisford Common leased or let under this section during the period of the lease or letting:

Provided that with respect to any parts of the said commons set apart or let for the purpose of playing games only such fences shall be erected as shall be reasonably necessary for the protection of such parts for the purposes for which they are so set apart or let:

- (6) The Corporation or their lessees tenants or licensees may make charges for admission to any part of the said commons closed to the public under this Act:
- (7) The Corporation may let Lammas Field Common and Saltisford Common for the grazing of cattle horses or sheep and they may fence off or otherwise enclose the whole or any part or parts so let so as to prevent the straying of cattle but not so as to prevent the access thereto of the public and they may make such charge as they think fit for each head of cattle horses or sheep so grazed:
- (8) The Corporation shall ensure that at all times (except on days when race meetings are being held) there shall be not less than forty acres in the aggregate of Lammas Field Common and Saltisford Common or either of them in respect of which the powers conferred by paragraphs (1) to (6) of this section are not being exercised.

Power to make  
byelaws.

19.—(1) Subject to the provisions of this Act the Corporation may make byelaws for any of the following purposes relating to Lammas Field Common and Saltisford Common (that is to say):—

- (a) For preventing fires and nuisances and for preserving order;



- (b) For preventing bird-catching bird-trapping and taking birds' eggs or nests and for preventing or regulating the killing taking injuring shooting chasing or disturbance of animals or birds and for preventing or regulating the setting of traps nets snares or other engines for any of those purposes;
- (c) For preventing persons other than persons entitled so to do under the provisions of this Act from turning out or permitting horses cattle sheep or other animals to graze or feed upon the said commons and for removing therefrom any horses cattle sheep or other animals so turned out or permitted to graze or feed and to regulate the grazing of horses cattle sheep and other animals upon the said commons;
- (d) For preventing or regulating the firing or discharge of firearms or the throwing or discharge of missiles;
- (e) For preventing the digging or taking of turf loam stone sand gravel or other substances;
- (f) For preventing the injuring cutting or felling of ferns gorse timber or other trees shrubs brushwood or other plants;
- (g) For preventing injury to or the defacement or removal of seats fences barriers or other things put up by the Corporation and the disfigurement of seats fences barriers buildings or trees by posting or painting bills placards or notices thereon or otherwise;
- (h) For preventing or regulating the deposit upon any part of the said commons of any rubbish manure or other substance;
- (i) For regulating the playing of games and preventing the racing of horses or other animals except by the lessees tenants and licensees of the Corporation;
- (j) For regulating the use of the parts of the said commons upon which persons may play games hold athletic sports exercise or train horses and hold meetings and shows and for prohibiting the use for the purposes aforesaid of other parts of the said commons;
- (k) For preventing or restraining any improper or offensive use of any part of the said commons or anything tending to the injury or disfigurement thereof.

(2) As respects byelaws made under this section the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Secretary of State.



## PART III.

—cont.

Sale of land  
for gasworks  
purposes.

20. Subject to the provisions of section 21 (For protection of British Transport Commission) of this Act if within a period of two years from the passing of this Act the Warwick Gas Company shall intimate to the Corporation in writing their desire to acquire for gasworks purposes the land numbered 4 on the deposited plan and so much of the Pigwells Common not exceeding (except with the consent of the Corporation) 2.33 acres or any part of such land or common the Corporation shall sell such land or common to the said company at such price and on such terms and conditions as may be agreed between the parties. Failing agreement the said price or the said terms or conditions shall be determined by a surveyor to be likewise agreed upon or failing agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Royal Institution of Chartered Surveyors such surveyor to have the powers of an arbitrator under the Arbitration Acts 1889 to 1934.

For protection  
of British  
Transport  
Commission.

21.—(1) Notwithstanding anything in this Act or shown on the deposited plans and sections the Corporation shall not otherwise than by agreement enter upon take or use any of the lands of the British Transport Commission (in this section referred to as “the commission”) situate in the borough of Warwick and shown and coloured green on the plan signed for purposes of identification by Howard Charles Fred Millard Fillmore on behalf of the Corporation and by Miles Beevor on behalf of the commission (which plan is in this section referred to as “the signed plan”).

(2) If within a period of three years after the passing of this Act the commission shall give notice to the Corporation of their desire to acquire for the purposes of their undertaking all or any part of the lands in the borough of Warwick shown and coloured red on the signed plan the Corporation shall sell to the commission the said lands or such part thereof as may be specified in such notice free from all lammas rights or other common or commonable rights at a price to be agreed or failing agreement to be determined by the arbitration of a single arbitrator to be agreed upon between them or in default of agreement to be appointed on the application of either party after notice to the other by the President of the Chartered Surveyors' Institution and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 and any Act amending the same shall apply with respect to such reference and determination:

Provided that if the acquisition by the commission of the lands to which any such notice relates is not completed



within a period of two years after the giving of such notice the obligation imposed on the Corporation by this subsection in respect of those lands shall cease.

PART III.  
—cont.

(3) The Corporation shall give notice to the commission before erecting or permitting to be erected any permanent building or structure on under or over any of the said lands coloured red on the signed plan.

(4) Notwithstanding anything contained in section 20 (Sale of land for gasworks purposes) of this Act the Corporation shall not be required to sell under the provisions of that section and shall not sell to the Warwick Gas Company any part of the said lands coloured red on the signed plan.

#### PART IV.

#### FINANCE.

22.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow at interest without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding the respective periods mentioned in the third column of the said table (namely):—

Power to  
borrow.

| Purpose.                                                         | Amount.            | Period for repayment.                            |
|------------------------------------------------------------------|--------------------|--------------------------------------------------|
| (a) The purchase of lands including the payment of compensation. | The sum requisite. | Sixty years from the date or dates of borrowing. |
| (b) The fencing and improvement of the race track and course.    | £6,000             | Ten years from the date or dates of borrowing.   |
| (c) The payment of the costs charges and expenses of this Act.   | The sum requisite. | Five years from the passing of this Act.         |

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.



## PART IV.

—cont.

Saving for  
powers of  
Treasury.

8 &amp; 9 Geo. 6.

c. 18.

9 &amp; 10 Geo. 6.

c. 58.

Expenses in  
connection  
with lands  
acquired.As to  
application of  
purchase  
money on sale  
of Pigwells  
Common.

23. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any Order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

24. Any expenses incurred by the Corporation in connection with the lands acquired under the powers of this Act shall be charged to and upon the general rate fund and the general rate.

25. The Corporation shall apply out of the general rate fund a sum or sums of money not being less in total amount than the total of any sum or sums received by them in respect of the sale of the land numbered 4 on the deposited plan and the Pigwells Common or any part thereof and carried by them to that fund to all or any of the following purposes (namely):—

- (a) the payment of the costs charges and expenses of this Act;
- (b) the payment of any compensation payable by them under this Act; and
- (c) the development laying out or improvement of any lands acquired by them under this Act.

## PART V.

## MISCELLANEOUS.

As to  
production of  
stamped copy  
of Act to  
Commissioners  
of Inland  
Revenue.54 & 55 Vict.  
c. 39.

26. The Corporation shall within three months after the final determination of the compensation (if any) payable in respect of any rights extinguished by this Act or the date of such extinguishment (whichever shall be the later) produce to the Commissioners of Inland Revenue a King's Printer's copy of this Act duly stamped with the ad valorem stamp duty payable upon an instrument (as defined by the Stamp Act 1891) effecting the release upon sale of such rights and in default of any such production as aforesaid the duty with interest thereon at the rate of three per centum per annum from the date of such final determination of the compensation or of such extinction shall be a debt due from the Corporation to His Majesty.

Saving for  
town and  
country  
planning.

27. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.



28. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

PART V.  
—cont.  
Costs of Act.

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PRINTED BY SIR NORMAN GIBB SCORGIE, C.V.O., C.B.E.  
Controller of His Majesty's Stationery Office and King's Printer of Acts  
of Parliament



Ch. xviii.

*Warwick Corporation*  
*Act, 1948.*

II & 12 GEO. 6.

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